

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 827

BY EDUCATION COMMITTEE

AN ACT

RELATING TO EDUCATION; AMENDING SECTION 33-5502, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE CREATION OF THE IDAHO DIGITAL LEARNING ACADEMY AND TO MAKE TECHNICAL CORRECTIONS; REPEALING SECTION 33-5503, IDAHO CODE, RELATING TO THE ACADEMY BOARD OF DIRECTORS; AMENDING CHAPTER 55, TITLE 33, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 33-5503, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING THE ACADEMY BOARD OF DIRECTORS; AMENDING SECTION 33-5504, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE DUTIES OF THE ACADEMY BOARD OF DIRECTORS AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 33-5504B, IDAHO CODE, TO REVISE PROVISIONS REGARDING ACADEMY EXPENDITURES AND BUDGET AND TO MAKE TECHNICAL CORRECTIONS; AMENDING CHAPTER 55, TITLE 33, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 33-5504C, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING FUNDING FOR DISTANCE STUDENTS; AMENDING SECTION 33-5505, IDAHO CODE, TO REVISE DEFINITIONS AND TO DEFINE A TERM; AMENDING SECTION 33-5508, IDAHO CODE, TO REVISE PROVISIONS REGARDING FUNDING FOR THE IDAHO DIGITAL LEARNING ACADEMY; REPEALING SECTION 33-1020, IDAHO CODE, RELATING TO IDAHO DIGITAL LEARNING ACADEMY FUNDING; AMENDING SECTION 33-1002, IDAHO CODE, TO REMOVE A PROVISION REGARDING DISTRIBUTIONS TO THE IDAHO DIGITAL LEARNING ACADEMY; AMENDING SECTION 33-1614, IDAHO CODE, TO PROVIDE A CORRECT CODE REFERENCE; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 33-5502, Idaho Code, be, and the same is hereby amended to read as follows:

33-5502. CREATION -- LEGISLATIVE FINDINGS -- GOAL. (1) There is hereby created the Idaho digital learning academy, a ~~public school choice~~ learning environment ~~which~~ that joins the best technology with the best instructional practices. The Idaho digital learning academy as provided for in this chapter, is not a single department of state government unto itself, nor is it a part of any of the twenty (20) departments of state government authorized by section 20, article IV, of the constitution of the state of Idaho, or of the departments prescribed in section 67-2402, Idaho Code. It is legislative intent that the Idaho digital learning academy operate and be recognized not as a state agency or department, but as a governmental entity whose creation has been authorized by the state, much in the manner as other single purpose districts.

(2) The legislature finds that it is in the best public interest to create the Idaho digital learning academy based on findings that indicate:

(a) Technology continues to impact ~~all facets of life, including the education of students of school age and adult learners~~ the education of students in this state;

(b) Systems for delivery of education are as diverse as the learners;
and

(c) ~~Public school systems~~ Idahoans are seeking high quality educational choices ~~within the public system~~, and schools and other education providers are aligning curriculum and assessment with state achievement standards; ~~and.~~

~~(d) The development of a comprehensive digital learning environment is cost prohibitive for individual school districts.~~

(3) The goal of the digital learning academy is to provide choice, accessibility, flexibility, quality, and equity in curricular offerings for students in this state.

SECTION 2. That Section 33-5503, Idaho Code, be, and the same is hereby repealed.

SECTION 3. That Chapter 55, Title 33, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 33-5503, Idaho Code, and to read as follows:

33-5503. ACADEMY BOARD OF DIRECTORS. On July 1, 2026, the academy board of directors shall be disbanded and reestablished as follows:

(1) There is hereby created an academy board of directors that shall be responsible for the development and oversight of the Idaho digital learning academy.

(2) The academy board of directors shall be comprised of nine (9) voting members as follows:

(a) The state superintendent of public instruction or the superintendent's designee;

(b) Two (2) members who are district superintendents, appointed by the governor;

(c) One (1) member who is a principal, appointed by the governor;

(d) Two (2) citizen members who are not professional educators. Citizen members shall be appointed by the governor and shall possess at least five (5) years' practical experience in finance or business;

(e) One (1) legislative member who is a member of the senate, appointed by the president pro tempore of the senate;

(f) One (1) legislative member who is a member of the house of representatives, appointed by the speaker of the house of representatives; and

(g) One (1) legislative member who is a member of the minority party, appointed by the minority leadership.

(3) Except as provided in subsection (4) of this section, each member of the academy board of directors shall serve a three (3) year term except for the state superintendent of public instruction or the superintendent's designee, who shall serve concurrently with the term of office to which the state superintendent is elected.

(4) For purposes of establishing staggered terms of office, the initial term of office for one (1) of the district superintendent positions shall be one (1) year and the other shall be three (3) years. The initial term of office for the principal position shall be one (1) year. The initial term of office for the citizen positions shall be three (3) years. The initial terms of office for the legislative positions shall be two (2) years.

1 (5) No member shall serve for more than two (2) consecutive full terms.
2 Members of the board who are appointed to fill vacancies that occur prior to
3 the expiration of a former member's full term shall serve the unexpired por-
4 tion of such term.

5 (6) The board shall meet in person at least three (3) times annually;
6 none of these three (3) meetings shall be conducted by telephone or video
7 conferencing.

8 SECTION 4. That Section 33-5504, Idaho Code, be, and the same is hereby
9 amended to read as follows:

10 33-5504. DUTIES OF THE ACADEMY BOARD OF DIRECTORS. The board shall be
11 responsible for ensuring that academy procedures and courses are in compli-
12 ance with the rules of the state board of education and applicable statutes
13 of the state of Idaho. In addition, the board shall:

14 (1) Recommend policies to be established by rule of the state board for
15 effecting the purposes of this chapter.

16 (2) Employ or contract with staff as necessary and purchase such sup-
17 plies and equipment as are necessary to implement the provisions of this
18 chapter, which purchases shall be exempt from the state procurement act in
19 chapter 92, title 67, Idaho Code.

20 (3) ~~To enter~~ Enter into contracts with any other governmental or public
21 agency whereby the board agrees to render services to or for such agency in
22 exchange for a charge reasonably calculated to cover the costs of rendering
23 such service.

24 (4) ~~To accept~~ Accept, receive, and utilize any gifts, grants, or funds
25 and personal and real property that may be donated to it for the fulfillment
26 of the purposes outlined in this chapter.

27 (5) Employ or contract with necessary faculty and teaching staff who
28 are fully certificated Idaho teachers or administrators, to design and de-
29 liver planned curriculum content. The academy shall be exempt from the pro-
30 visions of sections 33-513, 33-514, 33-514A, 33-515 and 33-515A, Idaho Code,
31 and shall be exempt from chapter 53, title 67, Idaho Code. All teaching and
32 educational staff of the academy shall be exempt, at will employees. The
33 number of such staff shall largely be dictated by the number of courses under
34 development, the number of courses offered, and the number of students par-
35 ticipating in academy programs.

36 (6) Obtain housing where actual operations of the academy are conducted
37 by academy staff.

38 (7) Contract with a service provider for delivery of academy courses
39 online which shall be accessible twenty-four (24) hours a day, seven (7) days
40 a week.

41 (8) Ensure that the academy is accredited as established by rule of the
42 state board of education.

43 (9) Develop policy for earning credit in courses based on mastery of
44 the subject, demonstrated competency, and meeting the standards set for each
45 course.

46 (10) Provide for articulating the content of certain high school
47 courses with college and university courses in order to award both high
48 school and undergraduate college credit.

1 (11) Develop policies and practices ~~which~~ that provide strict applica-
2 tion of time limits for completion of courses.

3 (12) Develop policies and practices on accountability, both by the
4 student and the teacher, and in accordance with the provisions of section
5 33-5507, Idaho Code.

6 (13) Manage the moneys ~~disbursed to the academy board from the superin-~~
7 ~~tendent received by the academy.~~

8 (14) ~~Set~~ Subject to approval by the state board of education, set fees
9 charged to ~~school districts for student participation; fees charged for sum-~~
10 ~~mer school; and fees charged to students and adults for professional devel-~~
11 ~~opment offerings~~ any user of academy courses, including but not limited to
12 public school districts, public charter schools, private schools, individ-
13 ual students, and other public or private entities and set fees charged for
14 summer school.

15 (15) Contract with a certified public accounting firm to conduct an an-
16 nual audit of the Idaho digital learning academy and contract with the leg-
17 islative services office to conduct a financial audit of the Idaho digital
18 learning academy every three (3) years.

19 SECTION 5. That Section 33-5504B, Idaho Code, be, and the same is hereby
20 amended to read as follows:

21 33-5504B. EXPENDITURES -- BUDGET. (1) There is hereby created in the
22 state treasury the Idaho digital learning academy fund. The fund shall
23 consist of ~~appropriations,~~ fees, grants, gifts, or moneys from any other
24 source. The state treasurer shall invest all idle moneys in the fund and
25 interest earned on such investments shall be retained by the fund.

26 (2) On or before the first Monday in July, there will be held at the
27 time and place determined by the Idaho digital learning academy board, a bud-
28 get meeting and public hearing upon the proposed budget of the Idaho digi-
29 tal learning academy. Notice of the budget meeting and public hearing shall
30 be posted at least ten (10) full days prior to the date of the meeting in at
31 least one (1) conspicuous place to be determined by the Idaho digital learn-
32 ing academy board of directors. The place, hour, and day of the hearing shall
33 be specified in the notice, as well as the place where such budget may be ex-
34 amined prior to the hearing. On or before the first Monday in July a budget
35 for the Idaho digital learning academy shall be agreed upon and approved by
36 the majority of the Idaho digital learning academy board of directors.

37 SECTION 6. That Chapter 55, Title 33, Idaho Code, be, and the same is
38 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
39 ignated as Section 33-5504C, Idaho Code, and to read as follows:

40 33-5504C. FUNDING -- DISTANCE STUDENTS. (1) An amount of four hun-
41 dred dollars (\$400) shall be distributed on a per-student basis to eligible
42 schools that enroll distance students pursuant to the provisions of this
43 section.

44 (2) (a) For purposes of this section, "distance student" means a student
45 in grades 9 through 12 who is:

46 (i) Enrolled in a separate secondary school, as defined in sec-
47 tion 33-1001, Idaho Code;

(ii) Participating in the Idaho youth challenge program provided in section 46-805, Idaho Code; or

(iii) Enrolled in a school located in an Idaho city with a population less than ten thousand (10,000) or enrolled in a school located fifteen (15) miles or more by an all-weather road from the center of a city with a population greater than ten thousand (10,000). In determining population to calculate each distribution, the state department of education shall use the most recent population count available for each city as determined by the most recent official federal census or by the Idaho department of labor statistics.

(b) "Distance student" does not include students enrolled in virtual education programs pursuant to section 33-1619, Idaho Code, virtual charter schools pursuant to section 33-5202A, Idaho Code, or private schools.

(3) By no later than November 15 of each year, the funds shall be distributed directly to all eligible schools pursuant to this section based on the previous year's enrollment counts. Such funds shall be used at the discretion of the school and may include expenses for teachers, remote courses, or other similar expenses.

(4) Distributions provided pursuant to this section shall not supplant any other distributions to eligible schools and shall instead supplement such distributions.

(5) Beginning September 1, 2027, and each year thereafter, eligible schools receiving funds pursuant to this section shall report to the state department of education on how such funds were expended.

(6) By December 31 of each year, the state department of education shall report to the legislature:

(a) The total amount of funds distributed per school;

(b) The total amount of distance students enrolled per school; and

(c) Information on how the funds were expended by each school from the most recent school year available.

SECTION 7. That Section 33-5505, Idaho Code, be, and the same is hereby amended to read as follows:

33-5505. DEFINITIONS. As used in this chapter:

(1) "Academy board," also referred to in this chapter as "the board" means the board of directors of the Idaho digital learning academy as such board is created in section 33-5503, Idaho Code.

~~(2) "Host district" means an Idaho school district where the fiscal operations of the Idaho digital learning academy are housed until January 1, 2009.~~

~~(3) (2) "Idaho digital learning academy" means an online educational program organized as a fully accredited school with statewide capabilities for the exclusive purpose of delivering accredited courses to Idaho resident students at no cost to the student unless the student enrolls in additional courses beyond full-time enrollment. Participation in the academy by public school students shall be in compliance with academy and local school district policies. Adult learners and out-of-state students shall pay tuition commensurate with rates established by the state board with the advice of the~~

1 ~~superintendent, and such funds shall be included in the budget and audit of~~
 2 ~~the academy's fiscal records. in grades 6 through 12.~~

3 ~~(4)~~ (3) "State board" means the Idaho state board of education. The
 4 board is authorized and directed, with the advice and recommendation of the
 5 academy board of directors, to promulgate rules to implement the provisions
 6 of this chapter.

7 ~~(5)~~ (4) "Superintendent" means the Idaho state superintendent of pub-
 8 lic instruction.

9 (5) "User" means any public school district, public charter school,
 10 private school, individual student, and other public or private entity that
 11 uses any academy courses provided for in this chapter.

12 SECTION 8. That Section 33-5508, Idaho Code, be, and the same is hereby
 13 amended to read as follows:

14 33-5508. FUNDING. ~~(1) Funding for the infrastructure of the program~~
 15 ~~shall be provided pursuant to section 33-1020, Idaho Code. The superinten-~~
 16 ~~dent shall disburse the funds to the Idaho digital learning academy board~~
 17 ~~of directors who shall use the moneys to develop courses and maintain oper-~~
 18 ~~ations of the academy.~~

19 ~~(2) Additional funding for course offerings through the Idaho digital~~
 20 ~~learning academy shall be added to the Idaho digital learning academy budget~~
 21 ~~by charging fees to the school districts for student participation. These~~
 22 ~~fees shall be established annually by the Idaho digital learning academy~~
 23 ~~board of directors and shall reflect the various types of course offerings~~
 24 ~~available. The infrastructure of the program shall be funded by charging~~
 25 ~~fees to the users of the academy courses. The fees shall be used to develop~~
 26 ~~courses and maintain the operations of the academy. The fees shall be estab-~~
 27 ~~lished annually by the Idaho digital learning academy board of directors,~~
 28 ~~subject to approval by the state board of education. Fees for summer school~~
 29 ~~and professional development offerings to students and adults shall also be~~
 30 established by the Idaho digital learning academy board of directors.

31 SECTION 9. That Section 33-1020, Idaho Code, be, and the same is hereby
 32 repealed.

33 SECTION 10. That Section 33-1002, Idaho Code, be, and the same is hereby
 34 amended to read as follows:

35 33-1002. EDUCATIONAL SUPPORT PROGRAM. The educational support pro-
 36 gram is calculated as follows:

37 (1) State Educational Support Funds. Add the state appropriation, in-
 38 cluding the moneys available in the public school income fund, together with
 39 all miscellaneous revenues to determine the total state funds.

40 (2) From the total state funds subtract the following amounts needed
 41 for state support of special programs provided by a school district:

42 (a) Pupil tuition-equivalency allowances as provided in section
 43 33-1002B, Idaho Code;

44 (b) Transportation support program as provided in section 33-1006,
 45 Idaho Code;

1 (c) Feasibility studies allowance as provided in section 33-1007A,
2 Idaho Code;

3 (d) The approved costs for border district allowance, provided in sec-
4 tion 33-1403, Idaho Code, as determined by the state superintendent of
5 public instruction;

6 (e) The approved costs for exceptional child approved contract al-
7 lowance, provided in subsection 2. of section 33-2004, Idaho Code, as
8 determined by the state superintendent of public instruction;

9 (f) Salary-based apportionment calculated as provided in sections
10 33-1004 through 33-1004F, Idaho Code;

11 (g) Unemployment insurance benefit payments according to the provi-
12 sions of section 72-1349A, Idaho Code;

13 (h) For expenditure as provided by the public school technology pro-
14 gram;

15 (i) For employee severance payments as provided in section 33-521,
16 Idaho Code;

17 ~~(j) For distributions to the Idaho digital learning academy as provided~~
18 ~~in section 33-1020, Idaho Code;~~

19 ~~(k)~~ (j) For charter school facilities funds and reimbursements paid
20 pursuant to section 33-5207, Idaho Code;

21 ~~(l)~~ (k) For an online course portal as provided for in section 33-1024,
22 Idaho Code;

23 ~~(m)~~ (l) For advanced opportunities as provided for in chapter 46, title
24 33, Idaho Code;

25 ~~(n)~~ (m) For additional math and science courses for high school stu-
26 dents as provided in section 33-1021, Idaho Code;

27 ~~(o)~~ (n) For master teacher premiums as provided in section 33-1004I,
28 Idaho Code;

29 ~~(p)~~ (o) For the support of provisions that provide a safe environment
30 conducive to student learning and maintain classroom discipline, an al-
31 location of three hundred dollars (\$300) per support unit;

32 ~~(q)~~ (p) An amount specified in the appropriation bill for the public
33 schools educational support program for counseling support as provided
34 for in section 33-1212A, Idaho Code, shall be distributed for grades 8
35 through 12 as follows:

36 (i) For school districts and public charter schools with one hun-
37 dred (100) or more students enrolled in grades 8 through 12, a pro
38 rata distribution based on students enrolled in grades 8 through
39 12 or eighteen thousand dollars (\$18,000), whichever is greater;

40 (ii) For school districts and public charter schools with fewer
41 than one hundred (100) students enrolled in grades 8 through 12,
42 one hundred eighty dollars (\$180) per student enrolled in grades
43 8 through 12 or nine thousand dollars (\$9,000), whichever is
44 greater;

45 ~~(r)~~ (q) An amount specified in the public schools educational support
46 program appropriation bill for literacy intervention. The disburse-
47 ments made to the school districts and public charter schools shall be
48 calculated as follows:

(i) Fifty percent (50%) based on average full-time equivalent enrollment of students in kindergarten through grade 3 as of the first Friday in November;

(ii) Fifty percent (50%) based on the number of kindergarten through grade 3 students who move a full level or who are proficient from the spring-to-spring administration of the statewide reading assessment in the prior fiscal year or, if there is not a prior spring assessment for the student, from fall to spring; and

(iii) Funds will be distributed to the school district or public charter school where the student is enrolled and takes the statewide reading assessment. Any school district or public charter school that has greater than one (1) but fewer than five (5) students in kindergarten through grade 3 will receive a minimum of two thousand dollars (\$2,000). Economically disadvantaged students shall count as one and three quarters (1.75) students for the purpose of calculating the distribution of the funds in subparagraph (ii) of this paragraph.

~~(s)~~ (r) For mastery-based education as provided for in section 33-1632, Idaho Code;

~~(t)~~ (s) For pay for success contracting as provided in section 33-125B, Idaho Code; and

~~(u)~~ (t) Any additional amounts as required by statute to effect administrative adjustments or as specifically required by the provisions of any bill of appropriation;

to secure the total educational support distribution funds.

(3) Average Daily Attendance. The total state average daily attendance shall be the sum of the average daily attendance of all of the school districts of the state. The state board of education shall establish rules setting forth the procedure to determine average daily attendance and the time for, and method of, submission of such report. Average daily attendance calculation shall be carried out to the nearest hundredth. Computation of average daily attendance shall also be governed by the provisions of section 33-1003A, Idaho Code.

(4) Support Units. The total state support units shall be determined by using the tables set out hereafter called computation of kindergarten support units, computation of elementary support units, computation of secondary support units, computation of exceptional education support units, and computation of alternative school support units. The sum of all of the total support units of all school districts of the state shall be the total state support units.

COMPUTATION OF KINDERGARTEN SUPPORT UNITS

Average Daily

Attendance	Attendance Divisor	Units Allowed
41 or more....	40.....	1 or more as computed
31 - 40.99 ADA....	-.....	1
26 - 30.99 ADA....	-.....	.85
21 - 25.99 ADA....	-.....	.75

1	16 - 20.99 ADA....	-.....	.6
2	8 - 15.99 ADA....	-.....	.5
3	1 - 7.99 ADA....	-.....	count as elementary

4 COMPUTATION OF ELEMENTARY SUPPORT UNITS

5	Average Daily		Minimum Units
6	Attendance	Attendance Divisor	Allowed
7	300 or more ADA.....		.. 15
8		..23...grades 4,5 & 6....	
9		..22...grades 1,2 & 3....1994-95	
10		..21...grades 1,2 & 3....1995-96	
11		..20...grades 1,2 & 3....1996-97	
12		and each year thereafter.	
13	160 to 299.99 ADA...	20.....	8.4
14	110 to 159.99 ADA...	19.....	6.8
15	71.1 to 109.99 ADA...	16.....	4.7
16	51.7 to 71.0 ADA...	15.....	4.0
17	33.6 to 51.6 ADA...	13.....	2.8
18	16.6 to 33.5 ADA...	12.....	1.4
19	1.0 to 16.5 ADA...	n/a.....	1.0

20 COMPUTATION OF SECONDARY SUPPORT UNITS

21	Average Daily		Minimum Units
22	Attendance	Attendance Divisor	Allowed
23	750 or more....	18.5.....	47
24	400 - 749.99 ADA....	16.....	28
25	300 - 399.99 ADA....	14.5.....	22
26	200 - 299.99 ADA....	13.5.....	17
27	100 - 199.99 ADA....	12.....	9
28	99.99 or fewer	Units allowed as follows:	
29	Grades 7 - 12		8
30	Grades 9 - 12		6
31	Grades 7 - 9		1 per 14 ADA
32	Grades 7 - 8		1 per 16 ADA

33 COMPUTATION OF EXCEPTIONAL EDUCATION SUPPORT UNITS

34	Average Daily		Minimum Units
35	Attendance	Attendance Divisor	Allowed
36	14 or more....	14.5.....	1 or more as computed
37			

1	12 - 13.99....	-	1
2	8 - 11.99....	-	.75
3	4 - 7.99....	-	.5
4	1 - 3.99....	-	.25

5 COMPUTATION OF ALTERNATIVE SCHOOL SUPPORT UNITS

6 (Computation of alternative school support units shall include
7 grades 6 through 12)

8	Pupils in Attendance	Attendance Divisor	Minimum Units
9			Allowed
10	12 or more.....	12	1 or more as
11			computed

12 In applying these tables to any given separate attendance unit, no
13 school district shall receive less total money than it would receive if it
14 had a lesser average daily attendance in such separate attendance unit. In
15 applying the kindergarten table to a kindergarten program of fewer days
16 than a full school year, the support unit allowance shall be in ratio to the
17 number of days of a full school year. The attendance of students attending
18 an alternative school in a school district reporting fewer than one hundred
19 (100) secondary students in average daily attendance shall not be assigned
20 to the alternative table if the student is from a school district reporting
21 fewer than one hundred (100) secondary students in average daily attendance,
22 but shall instead be assigned to the secondary table of the school district
23 in which they are attending the alternative school, unless the alternative
24 school in question serves students from multiple districts reporting fewer
25 than one hundred (100) secondary students in average daily attendance. The
26 tables for exceptional education and alternative school support units shall
27 be applicable only for programs approved by the state department of educa-
28 tion following rules established by the state board of education. Moneys
29 generated from computation of support units for alternative schools shall be
30 utilized for alternative school programs. School district administrative
31 and facility costs may be included as part of the alternative school expen-
32 ditures.

33 (5) State Distribution Factor per Support Unit. Divide educational
34 support program distribution funds, after subtracting the amounts necessary
35 to pay the obligations specified in subsection (2) of this section, by the
36 total state support units to secure the state distribution factor per sup-
37 port unit.

38 (6) District Support Units. The number of support units for each school
39 district in the state shall be determined as follows:

40 (a) (i) Divide the actual average daily attendance, excluding stu-
41 dents approved for inclusion in the exceptional child educational
42 program for the administrative schools and each of the separate
43 schools and attendance units, by the appropriate divisor from the
44 tables of support units in this section, then add the quotients
45 to obtain the district's support units allowance for regular stu-
46 dents, kindergarten through grade 12 including alternative school

students. Calculations in application of this subsection shall be carried out to the nearest hundredth.

(ii) Divide the combined totals of the average daily attendance of all preschool, kindergarten, elementary, secondary, juvenile detention center students and students with disabilities approved for inclusion in the exceptional child program of the district by the appropriate divisor from the table for computation of exceptional education support units to obtain the number of support units allowed for the district's approved exceptional child program. Calculations for this subsection shall be carried out to the nearest hundredth when more than one (1) unit is allowed.

(iii) The total number of support units of the district shall be the sum of the total support units for regular students, subparagraph (i) of this paragraph, and the support units allowance for the approved exceptional child program, subparagraph (ii) of this paragraph.

(b) Total District Allowance Educational Program. Multiply the district's total number of support units, carried out to the nearest hundredth, by the state distribution factor per support unit and to this product add the approved amount of programs of the district provided in subsection (2) of this section to secure the district's total allowance for the educational support program.

(c) District Share. The district's share of state apportionment is the amount of the total district allowance, paragraph (b) of this subsection.

(d) Adjustment of District Share. The contract salary of every noncertificated teacher shall be subtracted from the district's share as calculated from the provisions of paragraph (c) of this subsection.

(7) Property Tax Computation Ratio. In order to receive state funds pursuant to this section, a charter district shall utilize a school maintenance and operation property tax computation ratio for the purpose of calculating its maintenance and operation levy that is no greater than that which it utilized in tax year 1994, less four-tenths of one percent (.4%). As used herein, the term "property tax computation ratio" shall mean a ratio determined by dividing the district's certified property tax maintenance and operation budget by the actual or adjusted market value for assessment purposes as such values existed on December 31, 1993. Such maintenance and operation levy shall be based on the property tax computation ratio multiplied by the actual or adjusted market value for assessment purposes as such values existed on December 31 of the prior calendar year.

SECTION 11. That Section 33-1614, Idaho Code, be, and the same is hereby amended to read as follows:

33-1614. CAREER EXPLORATION. (1) Starting in fiscal year 2024, every student in grade 7 or grade 8 enrolled in an Idaho public school district, a specially chartered district, or a public charter school shall complete one (1) or more career exploration courses. A student may opt out by submitting a form to the school showing the student's parent or legal guardian has consented to the student not participating in the career exploration courses pursuant to this section. Such courses should align to the "first

1 step" standards set by the state board of education for career technical edu-
2 cation. Such courses may be offered face-to-face, through virtual education
3 programs, as online courses, or as hybrid courses consisting of a combina-
4 tion of online and in-person instruction.

5 (2) All staff teaching a career exploration course must have partici-
6 pated in a career exploration professional development course approved by
7 the state board of education.

8 (3) The state board of education will maintain resources that can be
9 utilized or modified for the implementation of this section.

10 (4) A career pathway plan shall be developed by students with the ap-
11 proval of parents or guardians, with advice and recommendation from school
12 personnel, which shall include career exploration courses or workforce dis-
13 covery activities. The purpose of a parent-approved student career pathway
14 plan is to outline a course of study and learning activities to help students
15 become successful in life. Every student's career pathway plan shall be re-
16 viewed annually and can be revised at any time. The student's school shall
17 provide a personalized career pathway plan progress report to the student's
18 parent or guardian. The progress report may be sent via electronic communi-
19 cation.

20 (5) Funding provided in section 33-1002(2)~~(r)~~ (q), Idaho Code, in ac-
21 cordance with section 33-1212A, Idaho Code, may be used to support career ex-
22 ploration courses.

23 (6) Professional development funding provided pursuant to section
24 33-1002, Idaho Code, may be used to provide professional development to ca-
25 reer exploration course instructors.

26 SECTION 12. An emergency existing therefor, which emergency is hereby
27 declared to exist, this act shall be in full force and effect on and after
28 July 1, 2026.